

## **CV-23-005108 ESQUIVEL, JUDY vs MONTUY, POLLY – Defendants’ Motion to Set Aside Default – GRANTED.**

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: The Court finds that Defendant’s motion was filed within the statutory 6-month window and is supported by Counsels’ Affidavit of Fault and Defendant’s proposed Answer. Civ. Proc. Code § 473(b); County of San Bernardino v. Mancini (2022), 83 Cal.App.5th 1095, rehearing denied, review denied. Furthermore, mandatory relief is requested which is available even where Counsel’s mistake, inadvertence, or neglect is inexcusable. Rodrigues v. Superior Court (2005) 127 Cal. App. 4th 1027; In re Marriage of Nishida & Kamoda, (2026)120 Cal. App. 5th 298 ;Colon-Perez v. Security Industry Specialists, Inc. (2025) 108 Cal.App.5th 403 review granted; Jackson v. Kaiser Foundation Hospitals, Inc. (2019) 243 32 Cal.App.5th 166; Luri v. Greenwald, (2003) 107 Cal. App. 4th 1119;Talbot v. Ghadimi, (2025)109 Cal. App. 5th 967. Judicial policy also favors liberally granting relief under this provision and favors trying cases on their merits. (Kramer v. Traditional Escrow, Inc. (2020) 56 Cal.App.5th 13). Defendant’s Proposed Answer amounts to substantial compliance with the Code provision and places Plaintiffs on notice of the defenses asserted. (Cnty. of Stanislaus v. Johnson, (1996) 43 Cal. App. 4th 832). Accordingly, the court grants the motion. The Court sets a hearing for 9/11/26 at 8:30 a.m. in Department 24 for a consideration of reasonable fees and costs incurred by plaintiff as a result of defendant’s actions. Plaintiff must file and serve by electronic mail a declaration in support of fees and costs by no later than 8/28/26. Any response by defendant must be filed and served by electronic mail by no later than 9/8/26. No reply to defendant’s response is authorized or will be considered.

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 6ed1110b220be639031dbf1911399aa1b3d9f5e99147c0bfa83a9bf1f48a4dd0

CV-23-005108 – ESQUIVEL, JUDY vs MONTUY, POLLY – Defendants’ Motion to Set Aside Default – GRANTED.

The Court finds that Defendant’s motion was filed within the statutory 6-month window and is supported by Counsels’ Affidavit of Fault and Defendant’s proposed Answer. Civ. Proc. Code § 473(b); County of San Bernardino v. Mancini (2022), 83 Cal.App.5th 1095, rehearing denied, review denied.

Furthermore, mandatory relief is requested which is available even where Counsel’s mistake, inadvertence, or neglect is inexcusable. Rodrigues v. Superior Court (2005) 127 Cal. App. 4th 1027; In re Marriage of Nishida & Kamoda, (2026)120 Cal. App. 5th 298 ;Colon-Perez v. Security Industry Specialists, Inc. (2025) 108 Cal.App.5th 403 review granted; Jackson v. Kaiser Foundation Hospitals, Inc. (2019) 243 32 Cal.App.5th 166; Luri v. Greenwald, (2003) 107 Cal. App. 4th 1119;Talbot v. Ghadimi, (2025)109 Cal. App. 5th 967.

Judicial policy also favors liberally granting relief under this provision and favors trying cases on their merits. (Kramer v. Traditional Escrow, Inc. (2020) 56 Cal.App.5th 13).

Defendant’s Proposed Answer amounts to substantial compliance with the Code provision and places Plaintiffs on notice of the defenses asserted. (Cnty. of Stanislaus v. Johnson, (1996) 43 Cal. App. 4th 832).

Accordingly, the court grants the motion.

The Court sets a hearing for 9/11/26 at 8:30 a.m. in Department 24 for a consideration of reasonable fees and costs incurred by plaintiff as a result of defendant’s actions. Plaintiff must file and serve by electronic mail a declaration in support of fees and costs by no later than 8/28/26. Any response by defendant must be filed and served by electronic mail by no later than 9/8/26. No reply to defendant’s response is authorized or will be considered.